# LEARNING ACTIVITIES

## Module: Comprehensive Dangerous Drugs Act (R.A. No. 9165, as amended)

*3 Individual, Self-Paced Tasks • Approx. 3– 5 hours total • Materials: R.A. 9165 text/reviewer*

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### SUBMISSION REQUIREMENTS

- Write or encode your output on Long Bond Paper (8.5" x13").
- On the first page of each task, include: Name, Year & Section, Date, and Task Title.
- If handwritten, use black or blue ink only. If typed, use 12-pt Arial or Times New Roman, 1.5 spacing.
- Observe a 1-inch margin on all sides of the paper.
- Label each output clearly (e.g., "Learning Task 1") and arrange them in order.
- Staple or clip all pages together before submission.

### Learning Objectives

- Apply the substantive and procedural provisions of R.A. 9165 to realistic, complex situations.
- Produce professional work products — a legal case evaluation, a multi-perspective case file, and a public information material — grounded in the law.
- Exercise legal reasoning and judgment in roles similar to those of actual justice-system and public-health stakeholders.
- Communicate legal and policy information effectively to different audiences.

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## LEARNING TASK 1: CASE EVALUATION MEMO (ROLE: PROSECUTOR / PAO LAWYER)

*Individual • Self-Paced • Time: 60– 75 minutes*

**Role: You are a newly assigned prosecutor (or PAO lawyer, if assigned to the defense) reviewing a drug case referred for inquest.**

**The Case Referred to You:**

**During a buy-bust operation, PDEA agents arrested Rico for allegedly selling 0.5 gram of shabu in five heat-sealed sachets. A marked P500 bill was recovered from him. At the police station, the seizing officer marked and inventoried the items but did so without the presence of an elected public official or a media representative — only the barangay kagawad was present. Rico claims he was merely asked by a stranger to hold a package and had no knowledge of its contents.**

**Your Task: Write a one-to-two page Case Evaluation Memo addressed to your Chief/Head of Office. Your memo must:**

1. State the specific unlawful act(s) and section(s) of R.A. 9165 involved, and the corresponding penalty range.
2. Assess the strength of the evidence, specifically addressing the chain-of-custody issue (the missing required witness) and whether the "saving clause" under R.A. 10640 could cure this defect.
3. Give a clear recommendation — e.g., to file the case as charged, downgrade the charge, or recommend dismissal for insufficient evidence — with legal justification.
4. Anticipate at least one defense argument (e.g., Rico's claim of lack of knowledge, or a possible violation of his constitutional rights) and explain how you would respond to it.

**Scoring Rubric**

| Criteria | Excellent | Satisfactory | Needs Work |
|---|---|---|---|
| Legal Accuracy | Correct sections/penalties cited and applied precisely | Mostly correct with minor gaps | Significant legal errors |
| Use of Facts | All relevant facts addressed and tied to legal issues | Most facts addressed | Facts ignored or misapplied |
| Chain-of-Custody Analysis | Clear, well-reasoned discussion of the witness defect and saving clause | Adequate but underdeveloped | Missing or superficial |
| Recommendation | Clear, well-justified; anticipates counter-arguments | Given but weakly supported | No clear recommendation |
| Professional Format | Reads like an actual legal memo; clear and organized | Mostly professional | Disorganized or informal |

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## LEARNING TASK 2: MULTI-PERSPECTIVE CASE FILE

*Individual • Self-Paced • Time: 60– 75 minutes*

You will work through the case of Nena, who was arrested after a search warrant led to the discovery of a clandestine shabu laboratory in her home, along with 50 grams of finished product. Her teenage nephew, who lived in the house but denies any participation, was also brought in for questioning. Working alone, take on three different professional perspectives on this same case, one after another, producing a short written output for each stage.

**Complete the following stages, in order and at your own pace:**

1. Inquest Prosecutor — Write a short Inquest Resolution (half a page) stating whether probable cause exists, what charge(s) you would file, against whom, and your legal basis under R.A. 9165.
2. Counsel for Nena — Write a short Counter-Argument (half a page) challenging the prosecution's case, e.g., the validity of the search, the chain of custody, or sufficiency of evidence.
3. Counsel for the Nephew — Write a short Defense Position (half a page) arguing that mere presence or residence in the house does not, by itself, establish criminal liability.

4. Self-Reflection — In 3– 5 sentences, step back from all three roles and give your own assessment of how the case should likely be resolved, and why.

**Scoring Rubric**

| Criteria | Excellent | Satisfactory | Needs Work |
|---|---|---|---|
| Legal Grounding | All stages firmly based on R.A. 9165 provisions | Generally grounded, occasional gaps | Weak or incorrect legal basis |
| Perspective-Taking | Each stage genuinely reflects that role's distinct interests | Roles understood but blend together | Roles unclear or interchangeable |
| Liability Analysis | Thoughtfully distinguishes Nena's liability vs. the nephew's | Distinction attempted but incomplete | No meaningful distinction made |
| Written Quality | Clear, concise, professional outputs for each stage | Adequate but has gaps | Incomplete or unclear |
| Independent Reasoning | Final reflection shows genuine, well-supported judgment | Reflection given but underdeveloped | Missing or superficial |

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## LEARNING TASK 3: PUBLIC INFORMATION CAMPAIGN MATERIAL

*Individual • Self-Paced • Time: 60– 90 minutes*

**Role:** You are part of your LGU's Anti-Drug Abuse Council (ADAC) or a barangay information officer tasked with educating residents about R.A. 9165.

**Your Task:** Design one (1) public information material — a tri-fold pamphlet layout, a one-page infographic script (described panel by panel), or a 60– 90 second PSA script — for ordinary residents. Your material must:

1. Explain, in plain language, at least three (3) unlawful acts under R.A. 9165 that commonly affect ordinary residents and their real consequences.
2. Correct at least one (1) common misconception about the law (e.g., confusing drug use with trafficking, or misunderstanding a buy-bust).
3. Include accurate information on at least one (1) support mechanism, such as voluntary submission for treatment, or how to report drug activity through lawful channels.
4. Reflect R.A. 9165's policy balancing enforcement with treatment, rehabilitation, and reintegration.

**Scoring Rubric**

| Criteria | Excellent | Satisfactory | Needs Work |
|---|---|---|---|
| Legal Accuracy | All legal information accurate and | Mostly accurate, minor errors | Contains legal inaccuracies |

| Criteria | Excellent | Satisfactory | Needs Work |
|---|---|---|---|
| | properly simplified | | |
| Clarity for Audience | Fully accessible to a non-legal, general audience | Mostly clear with some technical language | Too technical or confusing |
| Addressing Misconceptions | Clearly identifies and corrects a relevant misconception | Addressed but not well explained | No misconception addressed |
| Balance of Approach | Reflects both enforcement and rehabilitation | Leans heavily to one side | Ignores rehabilitation angle entirely |
| Creativity & Presentation | Engaging, well-designed, fits its format | Adequate presentation | Poorly presented or incomplete |